



DECISION

Complaint No. : POS/3630/KE-158/2021

Name and Address of the Complainant : Mr. Arshad Ali Qadri, Foundar & Mohtamim, Darul Uloom Subhania Raheemia, C-308, Yousuf Arfani Goth, Highway Landhi, UC-05, Bin Qasim Town, Malir, Karachi.

Name of the Agency Complained against : DMC Malir

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **ALLEGED INACTION ON THE COMPLAINTS MADE ABOUT ESTABLISHMENT OF CATTLE FARMS IN RESIDENTIAL AREA.**

THE COMPLAINT

Mr. Arshad Ali Qadri, Founder & Mohtamim of Darul Uloom Subhania Raheemia, C-308, Yousuf Arfani Goth, Landhi, UC-05, Bin Qasim Town, Malir, Karachi, lodged a complaint alleging that several cattle farms had been illegally established in the residential area adjoining the Madrasa premises. He reported that the owners of these cattle farms routinely dispose of dung and waste into the local drains, causing blockage and resulting in overflow of sewerage water which creates unhygienic conditions, and difficulties for residents and students attending the mosque and school. He stated that he had requested Municipal Authorities multiple-times for taking immediate action and to remove the cattle farms from the area to ensure proper sanitation, however, all these complaint went in vain. He therefore, solicited intervention of this office to get his grievance redressed.

PROCEEDINGS

2. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency.

3. In response the District Council Karachi, in response to letter No. POS/3630/KE-158/2021-4878 dated 23.12.2021, submitted a report vide No. DCK/CO/03/2022 dated 18.01.2022, acknowledging that complaints of this nature had been received repeatedly. The report claimed that although the Sanitation Department had carried out cleanliness drives multiple times to remove the accumulated waste, yet the cattle farm owners persistently dumping cow dung into the nearby nullah, causing blockages and accumulation of stagnant filthy water.

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4. The Chief Officer, District Council Karachi, further informed that instructions had also been issued by the Deputy Commissioner Malir for initiation of legal action against the cattle farm owners through lodging of FIRs to permanently curb the practice. Despite correspondence and directions, the violations by cattle farm owners continues, resulting in ongoing nuisance and sanitation problems for the local community.

FINDINGS

5. I have examined the case file and perused correspondence, reports and rejoinders etc., and observed that:

- i. The complaint was duly verified through the report of the District Council Karachi, confirming the presence of illegally established cattle farms in the residential locality of Yousuf Arfani Goth, Bin Qasim Town.
- ii. It was also substantiated that despite repeated cleanliness operations, the problem persists due to the recurring unlawful activity of cattle farm owners disposing of waste into public drains.
- iii. The matter constitutes an environmental and public health concern requiring administrative enforcement beyond the jurisdiction of the District Council alone. The Deputy Commissioner, District Malir, was also required to lend support to the municipal authority to take necessary legal and administrative measures to abate the nuisance permanently.

DECISION

6. In view of the above and in exercise of powers conferred upon me vide section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date) I direct the Deputy Commissioner, District Malir, to take immediate action for:

- i. Removal of all cattle farms established within the residential limits of Yousuf Arfani Goth and adjoining areas of Bin Qasim Town.
- ii. Oversee and ensure initiation of legal proceedings against persons responsible for dumping animal waste into public drains, in coordination with the District Council Karachi and the Sanitation Department.
- ii. To put in place an efficient system of regular sanitation and maintenance of the affected nullahs to prevent recurrence of unhygienic conditions.

7. The complaint is disposed of with above directions, and compliance shall be reported to this Secretariat within 30 days.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 05/12, 2025